

9.	30-2022-01299791 Pada vs. Radnet Management, Inc.	1. ADR Review Hearing 2. Motion to Vacate 3. Petition to Confirm Arbitration Award Plaintiff Grace Pada (“Plaintiff”) and Defendant Radnet Management, Inc. (“Defendant”) arbitrated Plaintiff’s claims in this action. Before the Court are (1) Plaintiff’s petition to vacate the arbitration award and (2) Defendant’s petition to confirm the arbitration award. For the reasons set forth below, and based on applicable law, Plaintiff’s petition to vacate is DENIED, and Defendant’s petition to confirm is GRANTED. <u>Petition to Vacate</u> <u>Legal Standard</u> 1. FAA Under the FAA, a court may vacate an arbitration award “where the arbitrator[] exceeded [his] powers.” (9 U.S.C. § 10(a)(4).) This is a “high hurdle. It is not enough for [Plaintiff] to show that the [arbitrator] committed an error—or even a serious error. [Citations.] ““It is only when [an] arbitrator strays from interpretation and application of the agreement and effectively ‘dispense[s] his own brand of industrial justice’ that his decision may be unenforceable.”” (<i>Stolt-Nielsen S.A. v. AnimalFeeds International Corp.</i> (2010) 559 U.S. 662, 671.) Per the Ninth Circuit, “an arbitrator’s manifest disregard of the law remains a valid ground for vacatur of an arbitration award under § 10(a)(4) of the Federal Arbitration Act.” (<i>Comedy Club, Inc. v. Improv West Associates</i> (9th Cir. 2009) 553 F.3d 1277, 1281.) “We have stated that for an arbitrator’s award to be in manifest disregard of the law, ‘[i]t must be clear from the record that the arbitrator [] recognized the applicable law and then ignored it.’” (<i>Id.</i>, at p. 1290.) 2. CAA Under the CAA, a court may vacate an arbitration award when “[t]he arbitrator[] exceeded [his] powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.” (CCP § 1286.2(a)(4).) Again, this is a high hurdle. “[A]n arbitrator’s decision is not generally reviewable for errors of fact or law, whether or not such error appears on the face of the award and causes substantial injustice to the parties.” (<i>Moncharsh v. Heily & Blase</i> (1992) 3 Cal.4th 1, 6.) “There are, however, limited exceptions to this general rule.” (<i>Ibid.</i>) “Numerous courts have since construed <i>Moncharsh</i> to stand for the proposition that an arbitrator exceeds its powers within the meaning of Code of Civil Procedure section 1286.2 by issuing an award that violates a party’s statutory rights or ‘an explicit legislative expression of public policy.’” (<i>Ahdout v. Hekmatjah</i> (2013) 213 Cal.App.4th 21, 37.) <u>Analysis</u> Plaintiff contends that the Arbitrator exceeded his powers by manifestly disregarding the law and making irrational decisions in ruling on her claims for (1) failure to engage in a timely, good faith, interactive process and (2) for failure to reasonably accommodate Plaintiff’s disabilities. Plaintiff also contends that the Award cannot be confirmed as a matter of public policy. //
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Failure to Engage in Interactive Process

Plaintiff pursued her interactive process claims under two theories. Plaintiff contends that the Arbitrator exceeded his powers in considering both theories.

Plaintiff's first theory of liability for failure to engage in the interactive process was that Defendant's "Transfer Policy" violated FEHA.

Plaintiff contends that the Arbitrator exceeded his powers when he acknowledged that Defendant's "Transfer Policy" violated FEHA, but then found it excusable because Defendant made an exception to the Policy for Plaintiff. Plaintiff contends that the Arbitrator could not have found that Defendant made an exception because, elsewhere in the Award, the Arbitrator described the exception as a "half-hearted" offer to transfer Plaintiff to another position, which the Arbitrator found was not sufficient to constitute engaging in the interactive process. Plaintiff also contends that the Arbitrator exceeded his powers when he found that the Transfer Policy did not violate FEHA because Plaintiff was not qualified for a transfer.

Plaintiff's brief mischaracterizes the Arbitrator's findings. The Arbitrator did not characterize Defendant's transfer offer as half-hearted, but rather used that phrase in describing Plaintiff's argument. (Award at 34:8-14.) The Arbitrator found that both parties failed to engage in the interactive process, and that Defendant's violation was due to "raising and then not fully discussing a possible remove Schedule job for [Plaintiff]." (Award at 33:14-19.) Thus, it appears that the Arbitrator's finding was that Defendant did not properly continue to engage in the interactive process—but that Defendant did not apply the Transfer Policy to Plaintiff. For example, the Arbitrator found that Defendant did not provide Plaintiff with a copy of the Scheduler position, despite Plaintiff's request. (Award at 35:3-8.)

Plaintiff contends that the Arbitrator's finding that Plaintiff was not qualified for a transfer because she did not demonstrate that she could perform the Scheduler position violates *Roby v. Mckesson Corp.* (2009) 47 Cal.4th 686. According to Plaintiff, *Roby* stands for the proposition that corporate policies that limit FEHA obligations is a FEHA violation, regardless of discriminatory intent. (Pet. at 13:23-25.) The Court in *Roby* was considering the propriety of an award of punitive damages. The Court explicitly stated that it was the application of the Defendant's rigid attendance policy that gave rise to Defendant's liability, not the mere adoption of the policy itself. (*Roby* at 713-714, fn. 11.)

Plaintiff's argument appears to be mixing apples and oranges. At the arbitration, Plaintiff contended that the Transfer Policy was violated FEHA because it required voluntary transfer policies to be in good standing. (Award at 38:23-26.) The Arbitrator did not run afoul of *Roby* because the Arbitrator found that Defendant did not apply the Transfer Policy to Plaintiff. On the other hand, the Arbitrator found that Plaintiff did not show damages for failure to engage in the interactive process because Plaintiff did not demonstrate at the time of the hearing that she would have been able to perform the essential functions of the potential Scheduler position. (Award at 38:1-6.) This latter theory is discussed in further detail below.

Plaintiff's second theory of liability for failure to engage in the interactive process was that Defendant violated its duty by failing to communicate with Plaintiff for four months between April 1, 2022 and August 12, 2022.

Plaintiff contends that the Arbitrator manifestly disregarded the law because he found that there was no violation because Plaintiff did not prove that there was a position available that she could have performed. Plaintiff contends that the Arbitrator misapplied the standard enunciated in *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986 because that case stands for the proposition that a plaintiff must show that a reasonable accommodation was available—not that there was another position available. While it is true that *Scotch* discusses reasonable accommodations, the Arbitrator did not appear to manifestly disregard the law. Although Plaintiff asked for accommodations for her position, Defendant was not able to provide all of them, and Plaintiff explicitly requested that if Defendant did not give her everything she requested “then at least allow me to stay on leave.” (Award at 33:8-13.) Thus, Plaintiff was on an indefinite leave of absence due to her apparent inability to perform her current position. Thus, logically, in this instance Plaintiff needed to demonstrate that there was an available position that she could perform. In other words, the reasonable accommodation that Plaintiff ultimately sought was the Scheduler position.

Plaintiff also contends that the Arbitrator’s damages findings were irrational. Plaintiff attempts to have this Court re-examine the underlying evidence concerning emotional distress damages, but that is not proper on a motion to vacate an Arbitrator’s award. Plaintiff also takes issue with the Arbitrator’s finding that no economic damages were suffered because Plaintiff began working with another company on April 8. Plaintiff contends that date is wrong. The Arbitrator cites to Plaintiff’s brief for the date. This Court does not have that record before it and its task is not to review the Arbitrator’s findings of fact. The cited portion of the Arbitration Award discusses an email that Defendant sent on April 1. The Arbitrator points out that Defendant failed to respond to Pada’s April 8 email. Conceivably, the Arbitrator found that the failure to respond to the email began the period of failure to engage in the interactive process. Elsewhere in the Arbitration Award, the Arbitrator characterizes the April 1 letter as including reasonable counter-proposals to Plaintiff’s requests for accommodation. (Award at 32:20-33:3.)

Plaintiff also contends that the Arbitrator’s ruling is inconsistent with *Nadaf-Rahrov v. Neiman Marcus Group* (2008) 166 Cal.App.4th 952, 985, but the Court disagrees. The Arbitrator found that Plaintiff resigned almost immediately after Defendant resumed the interactive process, so her loss of employment was not caused by Defendant’s four month failure to engage in the interactive process. (Award at 40:3-6.) This is not a manifest disregard of the law.

Failure to Reasonably Accommodate Disabilities

Plaintiff contends that the Arbitrator manifestly disregarded the law by recognizing that employers have an affirmative duty to seek out vacant positions for reassignment, citing to testimony that demonstrated Defendant never looked for a position for Plaintiff, and then holding that Defendant did not violate FEHA.

Reviewing the Award, the Court disagrees with Plaintiff’s characterization. The testimony cited by the Arbitrator concerns whether Defendant had an open remote Scheduler position; not whether Defendant was looking for a position for Plaintiff. (Award at 14:15-28; 15:25-26.) Thus, the Court does not find merit to Plaintiff’s argument.

		<u>Public Policy</u> Plaintiff contends that the Award cannot be enforced because Defendant’s employment contract contravenes public policy through its Transfer Policy. As discussed above, the Arbitrator found that Defendant was not enforcing that policy because it was looking for a Scheduler position for Plaintiff. Therefore, enforcing the Award does not contravene public policy; it does not enforce the allegedly unlawful policy. Plaintiff also contends that the Award should not be confirmed because it creates an appearance of impropriety. Plaintiff argues that the Armendariz rule—that an employer must pay all arbitration fees in a FEHA dispute with an employee—conflicts with the canons of judicial ethics because because of this appearance of impropriety. (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal.4th 83, 113.) Plaintiff has not submitted any evidence that she objected in any way to proceeding before the Arbitrator under the terms of the employment agreement, which are consistent with <i>Armendariz</i>. In fact, Plaintiff did not even oppose the motion to compel arbitration and instead filed a notice of non-opposition. (ROA 22.) Plaintiff’s non-opposition was filed more than two years ago. To allow a party to proceed with arbitration all the way through its final conclusion before raising an argument that the entire proceeding was improper would operate to undermine the entire arbitration process. Plaintiff waived this argument by failing to raise it at any prior time. Accordingly, based on the foregoing, Plaintiff’s petition to vacate the award is DENIED. <u>Petition to Confirm</u> If a petition to confirm an arbitration award “is duly served and filed, the court shall confirm the award as made . . . unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceedings.” (CCP § 1286.) There is no dispute about the proper filing and service of Defendant’s petition to confirm. Plaintiff’s petition to vacate has been denied. There is no request to otherwise correct or dismiss the award. As a result, the petition to confirm the award is GRANTED. Defendant to give notice of both rulings.
11.	30-2023-01367697 Seifpoor vs. Goldberg	Motion for Summary Judgment and/or Adjudication Plaintiffs Mahnaz Seifpoor and Karim Ashkpoor allege two causes of action against moving Defendant Glenn I. Goldberg, D.O.: (1) professional negligence and (2) loss of consortium. Defendant moves for summary judgment as to both causes of action. The elements of a cause of action for professional negligence (medical malpractice) are: “(1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (<i>Lattimore v. Dickey</i> (2015) 239 Cal.App.4th 959, 968.)